

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution 27-003

**Amendments to Title 3 of the Chickasaw Nation Code
(Chickasaw Nation Professional Boxing Licensing Act)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, there is a need to promote the public health and safety, education, and welfare that may contribute to the social, physical well-being and economic benefit of citizens of the Chickasaw Nation, and

WHEREAS, there is a need to create authorities with attendant powers to achieve objectives allowed under the provisions of the Constitution of the Chickasaw Nation, and

WHEREAS, there is a need to provide a system for regulating boxing and martial arts activities in and for the Chickasaw Nation, which is in the best interests of the Chickasaw people and their health and welfare, and

WHEREAS, there is a need for the Chickasaw Nation to comply with the provisions of the "Professional Boxing Safety Act of 1996" as amended by the "Muhammad Ali Boxing Reform Act" (15 U.S.C. § 6301 et seq.), and

WHEREAS, the Chickasaw Nation Professional Boxing Licensing Act, as created, shall be administrated by the Gaming Commissioner of the Chickasaw Nation so that the Chickasaw Nation may issue professional boxing licenses in compliance with federal law.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Nation Tribal Legislature hereby approves and enacts the following language referred to as the "Chickasaw Nation Professional Boxing Licensing Act" to be codified as Title 3, Chapter 5 of the Chickasaw Nation Code:

SECTION 3-501.1 **SHORT TITLE.**

Be it enacted by the Chickasaw Nation Legislature assembled, that this Act shall be cited as the "Chickasaw Nation Professional Boxing Licensing Act." (hereinafter the "Act")

SECTION 3-501.2 **FINDINGS.**

The Chickasaw Tribal Legislature finds that:

- A. a need exists to promote the public health and safety, education, and welfare that may contribute to the social, physical well-being and economic benefit of citizens of the Chickasaw Nation;
- B. a need exists to create authorities with attendant powers to achieve objectives allowed under the provisions of the Constitution of the Chickasaw Nation;
- C. a need exists to provide a system for regulating Boxing and Martial Arts activities in and for the Chickasaw Nation, which is in the best interests of the Chickasaw people and their health and welfare; and
- D. a need exists for the Chickasaw Nation to comply with the provisions of the "Professional Boxing Safety Act of 1996" as amended by the "Muhammad Ali Boxing Reform Act" (15 USC §6301 et seq.).

SECTION 3-501.3 **BASIS OF AUTHORITY.**

The basis of authority of this Act is Article VI, Section 1, and Article VII, Section 4 of the Constitution of the Chickasaw Nation.

SECTION 3-501.4 **DEFINITIONS.**

A. As used in this Act:

- 1. "Applicant" means any individual, Club, association, corporation, partnership or trust which submits to the Commissioner an application for a License or Permit pursuant to the Act.
- 2. "Booking Agents" means independent contractors who act as bookers, agents, agencies and representatives who secure engagements and contracts for boxers.
- 3. "Boxing" means any form of competitive Pugilism or unarmed combat in which a blow is usually struck which may reasonably be expected to inflict injury,

including, but not limited to, Boxing, wrestling, and Kickboxing, including the Martial Arts as defined by the provisions of this Section.

4. "Broadcast" means any audio or visual transmission sent by any means of signal, whether live or taped or time delayed, and includes any replays thereof. The term includes Professional Boxing as well as Cage Fighting.

5. "Cable System Operator" means any Person who makes available or provides customers a closed-circuit telecast which is Pay-per-view, including any Person who does so as a direct Broadcast satellite provider or other multichannel video service provider.

6. "Cage Fight" means combat in an octagon or other area conducted under rules different from those referenced in the Professional Boxing Safety Act as amended by the Muhammad Ali Boxing Reform Act (15 U.S.C. §6301, et seq.). The term primarily references contact matches emphasizing one or more Martial Arts under rules established by the Commissioner.

7. "Closed-circuit Telecast of Professional Boxing Events" means telecast rights, including television, cable television, or Pay-per-view Telecasts, acquired by paying a Licensing fee or by paying a contractual price by a business or individual, including, but not limited to, arenas, entertainment or meeting centers, restaurants, bars, taverns, hotels, motels, Clubs, and organizations, which offers the viewing of the event to the public or to private residences.

8. "Club" means an incorporated or unincorporated association or body of individuals voluntarily united and acting together for some common or special purpose.

9. "Closed-Circuit Television Permit" means that permit issued by the Commissioner in accord with Section 3-501.16.

10. "Commissioner" means the Gaming Commissioner of the Chickasaw Nation which is an individual and/or official office of an individual office holder and not a Commission.

11. "Contest" means a Boxing match in which it is reasonable to anticipate that the Participants strive earnestly in good faith to win.

12. "Corner Person" means, but shall not be limited to, a Trainer, a second, or any other individual who attends the Participant during a match.

13. "Exhibition" means a Boxing match in which the Participants show or display their skill without necessarily striving to win, such as Sparring.

14. "Judge" means an individual other than a referee who shall have a vote in determining the winner of any Contest.

15. "Kickboxing" means any form of competitive pugilistic professional Contest in which blows are delivered with the hand and any part of the foot. Such Contests take place in a rope-enclosed ring and are fought in timed rounds.

16. "License" means a certificate issued by the Commissioner to Participants of sanctioned Professional Boxing Contests and Professional Exhibitions and is a mandatory requirement for participation in such events.

17. "Manager" means an individual who controls or administers the affairs of any Professional Boxer, including acting as a booking agent. "Manager" shall include the representative of a Manager as defined by the Commissioner.

18. "Martial Arts" means any form of karate, kung fu, tae kwon-do, or any other form of martial or self-defense art.

19. "Matchmaker" means an individual who brings together Professional Boxers or arranges Professional Boxing Contests or Professional Exhibitions.

20. "Nation's Jurisdiction" means the scope of the Chickasaw Nation's territorial, subject matter, and personal jurisdiction, as such scope is defined by the preamble to the Chickasaw Nation Constitution and Sections 1-105 and 5-201.3 of the Chickasaw Nation Code.

21. "Participant" means a Professional who takes part in a Professional Boxing Contest or Professional Exhibition or a professional who takes part in Cage Fighting.

22. "Pay-per-view Telecasts" means telecasts offered by cable television companies to subscribers at a cost in addition to the monthly cable television subscription rate. Such events shall include local and state Professional Boxing Contests and Professional Exhibitions as defined in this Section.

23. "Person" means any individual, partnership, limited liability company, Club, association, corporation, or trust.

24. "Physician" means an individual a person properly and lawfully licensed to engage in the general practice of medicine or osteopathic medicine.

25. "Professional Boxer" means an individual eighteen (18) years of age or older who competes for money, prizes or Purses, or who teaches, instructs or assists in the practice of Boxing or Sparring as a means of obtaining pecuniary gain.

26. "Professional Boxing Contest" and "Professional Exhibition" means a Boxing match conducted within the Nation's Jurisdiction in which the Participants are Persons who must be Licensed pursuant to the provisions of the Act, and the combat covered under 15 U.S.C. §6301, et seq.

27. "Promoter" means any individual, whether a resident or nonresident of Chickasaw Nation, or Club or corporation, that produces or stages Professional Contests or Professional Exhibitions conducted within the Chickasaw Nation and shall include any officer, director, or employees as defined by the Commissioner.

28. "Pugilism" means Boxing or the skill or practice of fighting with the fists for Professional Boxing.

29. "Purse" means the financial guarantee or any other remuneration or thing of value for which a Professional Boxer participates in a Professional Boxing Contest or Professional Exhibition and shall include the Participant's share of any payment received for radio Broadcasting, television, including cable television, pay-per-view television, and closed-circuit television, and motion picture rights. "Purse" shall also include gate receipts and any other prizes.

30. "Ring Official" means any individual who performs an official function during the progress of a Professional Boxing Contest or Professional Exhibition or Cage Fighting event including but not limited to timekeepers, Judges, referees, and attending Physicians.

31. "Sanctioning Permit" or "Permit" means a Permit issued by the Commissioner to Promoters who make application for official approval of Professional Boxing Contests and Professional Exhibitions and/or Cage Fighting events.

32. "Sparring" means to engage in a form of Boxing with jabbing or feinting movements, and the exchange of few heavy blows such as occurs in a practice or Exhibition Boxing match.

33. "Telecast Promoter" means any Promoter who shows or causes to be shown in a closed-circuit telecast of any Professional Boxing event or cage match that originates within the Indian country of the Chickasaw Nation. "Telecast Promoter" shall not include a Cable System Operator.

34. "Trainer" means an individual who assists, coaches, or instructs any Professional Boxer with respect to physical conditioning, strategy, techniques, or preparation for competition, Professional Boxing Contests, or Professional Exhibitions.

35. "Vendor" means any individual, firm, organization, Club, or corporation that participates in the conduct of a Professional Boxing Contest or Professional

Exhibition by offering for sale food or merchandise, including, but not limited to, wearing apparel, alcoholic and nonalcoholic beverages, souvenirs, and programs.

B. The Commissioner may by regulation or rule define any term which is not defined in the Act.

SECTION 3-501.5

POWER AND DUTY OF COMMISSIONER.

A. The Commissioner shall have the power and duty to promulgate, prescribe, amend, and repeal regulations or rules necessary to implement the provisions of the Act, including, but not limited to, defining qualifications, categories, limitations, and fees for Licenses, Permits, and examinations, and establishing bonding, contract, and insurance requirements for professional Boxing and cage matches.

B. The Commissioner shall have the duty to establish and provide for the implementation of health and safety standards as required by 15 U.S.C. §6312(b)(2) by regulation(s) published not less than five (5) days before any activity governed by this Act.

SECTION 3-501.6

POWERS OF COMMISSIONER--VALIDITY OF PRIOR LICENSES, PERMITS, CERTIFICATES OR REGISTRATIONS--TRANSFERS.

A. The Commissioner shall have the power to:

1. promulgate rules and issue orders necessary to carry out the purposes of this Act and enforce the provisions of said Act and the rules promulgated pursuant thereto;
2. assume jurisdiction over all matters relating to the Licensing of Professional Boxers, Cage Fighters, Trainers, Managers, Corner Persons, Booking Agents, Matchmakers, Promoters, referees, Judges, timekeepers, Vendors, Physicians, announcers, Clubs, and corporations associated with a Professional Boxing Contest, or Professional Exhibition related thereto;
3. set License and Permit fees pursuant to the requirements of this Act;
4. conduct investigations into the qualifications of Applicants for Licensure and registration;
5. conduct investigations and proceedings for alleged violations of the Act and order or subpoena the attendance of witnesses, the inspection of records and premises, and the production of relevant books and papers necessary to such investigations and proceedings;

6. develop and administer examinations for Applicants for Licenses and Permits; and
7. make such expenditures as may be necessary in the performance of his duties.

SECTION 3-501.7**SANCTIONING PERMITS--EXEMPTIONS.**

The Commissioner is hereby vested with jurisdiction to issue Sanctioning Permits for all Professional Boxing Contests and Professional Exhibitions and Cage Fighting held or given within the Nation's Jurisdiction, associated Closed-Circuit Telecast Permits, and Licenses for Participants of sanctioned Contests and Exhibitions.

SECTION 3-501.8**APPLICATION FOR SANCTIONING PERMIT--NOTICE OF SANCTION.**

A. The Commissioner shall promulgate rules necessary to implement processes for issuing Sanctioning Permits for Professional Boxing Contests and Professional Exhibitions and Cage Fighting held or given in the Chickasaw Nation and for issuing Licenses for Participants of sanctioned Contests and Exhibitions.

B. All Persons or entities who participate in any Professional Boxing Contest, or Professional Exhibition, or Cage Fight sanctioned by the Commissioner, including, but not limited to, Professional Boxers, Cage Fighters, Trainers, Managers, Corner Persons, Booking Agents, Matchmakers, Promoters, referees, Judges, timekeepers, Vendors, Physicians, announcers, Clubs, and corporations associated with a Professional Boxing Contest or Professional Exhibition or Cage Fight sanctioned by the Commissioner, shall be required to make application to the Commissioner for a License to participate in the Nation's Jurisdiction in any Professional Boxing Contest, Professional Exhibition, or Cage Fight sanctioned by the Commissioner.

C. An application for a Sanctioning Permit or a License shall be on such form and require such information as shall be prescribed by the Commissioner.

D. The Commissioner shall determine reasonable costs and fees associated with issuing Sanctioning Permits and Licenses. All costs and fees for sanctioning an event shall be payable by the Promoter making application for a Sanctioning Permit. Costs and fees for a License may be paid by the Participant making application or by the Promoter of an event sanctioned by the Commissioner.

E. A Sanctioning Permit shall be in effect upon the date issued by the Commissioner and shall expire upon the conclusion of the event, unless the Sanctioning Permit is suspended or revoked for just cause by the Commissioner. Licenses shall be in effect upon the date issued by

the Commissioner, and all Licenses shall expire one year from date of issuance unless the License is suspended or revoked for just cause by the Commissioner.

F. Only Promoters whose Professional Boxing Contests, Professional Exhibitions, and/or Cage Fights have been sanctioned by the Commissioner are authorized to place a notice of sanction on printed and promotional materials associated with the sanctioned event, which shall include but not be limited to advertising, tickets, programs, posters, souvenirs, wearing apparel, billboards, marquees and promotional signs inside and outside the venue where the event is to be held, and Broadcasting, including, but not limited to, radio, television, including cable television, pay-per-view television, and closed-circuit television and motion pictures of the event. The notice of sanction shall substantially state the following:

"Pursuant to the provisions of Chickasaw Code and the rules of the Commissioner, THIS
EVENT IS SANCTIONED BY THE CHICKASAW NATION. Sanctioning Permit No.
_____."

G. All fees and other monies resulting from sanctioning Professional Boxing Contests and Professional Exhibitions and Licenses shall accrue to the Chickasaw Nation.

SECTION 3-501.9

SANCTIONING PERMIT REQUIRED.

A Sanctioning Permit issued by the Commissioner shall be required in order to conduct, sponsor, hold, or participate in Professional Boxing Contests, Professional Exhibitions, or Cage Fighting.

SECTION 3-501.10

WITHHOLDING, SUSPENSION OR REVOCATION OF LICENSE AND SANCTIONING PERMIT--CENSURE OR REPRIMAND--FEES.

A. The Commissioner may issue, withhold, suspend, or revoke any and all Licenses and Sanctioning Permits required by the provisions of the Act or the rules promulgated by the Commissioner. The Commissioner may also censure or reprimand any Licensee or Sanctioning Permit holder.

B. The Commissioner shall fix a uniform scale of fees for all Licenses, Sanctioning Permits, Closed-Circuit Telecast Permits, and examinations, and such fees shall be set at reasonable cost.

C. Application for any License or Permit from the Commissioner is an unconditional consent to the jurisdiction of the Chickasaw Nation, the Commissioner and administrative processes and the Courts of the Chickasaw Nation without limit to time or event.

SECTION 3-501.11**CONSIDERATIONS BEFORE ISSUANCE OF LICENSE OR
SANCTIONING PERMIT.**

Before issuing any License or Sanctioning Permit, the Commissioner shall consider the following in order of importance:

1. the preservation of the safety and health of the Participants;
2. the best interest and welfare of the public; and
3. the best interest of professional Boxing or Cage Fighting in general.

SECTION 3-501.12**SECURITY.**

A. Before any Sanctioning Permit is issued to any Promoter to conduct or hold a Professional Boxing Contest, Professional Exhibition and/or Cage Fight, the Applicant shall file with the Commissioner a security in the form of a bond, cash, certificate of deposit, or other securities acceptable to the Commissioner, payable to the Chickasaw Nation in an amount determined by the Commissioner, executed by the Applicant and a surety company or companies authorized to do business in the Nation's Jurisdiction, and conditioned upon the faithful performance by the Promoter, which shall include but not be limited to the cancellation of a Professional Boxing Contest or Professional Exhibition without good cause as determined by the Commissioner once the Professional Boxing Contest, Professional Exhibition and/or Cage Fight has been approved by the Commissioner.

B. The security required under this Section shall guarantee the payment of all taxes, fees, fines and other monies due and payable pursuant to the provisions of the Act and the rules promulgated by the Commissioner, including, but not limited to, the payment of Purses to the competitors, any contributions for required insurance, pensions, disability and medical examinations, the repayment to ticket holders of purchased tickets, the payment of fees to Ring Officials and Physicians, and, in the event of the cancellation of a Professional Boxing Contest, Professional Exhibition and/or Cage Fight approved by the Commissioner without good cause, an amount determined by the Commissioner.

C. After issuance of a Sanctioning Permit to a Promoter, the Commissioner may modify the amount of security required to ensure adequate and sufficient coverage for payments of taxes, fees, fines, Purses, and other monies due and payable pursuant to the provisions of this Section. Failure of any Promoter to obtain the modified security required pursuant to this Section within such period of time as the Commissioner may prescribe shall be grounds for revocation of the Sanctioning Permit of such Promoter.

D. All proceeds of securities collected pursuant to the provisions of this Section shall accrue to the benefit of the Chickasaw Nation.

SECTION 3-501.13**SUBPOENA OF WITNESSES, PRODUCTION OF
RECORDS--AUDITS--SUSPENSION FOR JUST CAUSE.**

The Commissioner may:

1. subpoena witnesses and compel the production of any and all books, memoranda, documents, papers, and records showing the receipts and disbursements of any individual, Club, or corporation Licensed under the provisions of the Act or any other Person or entity subject to jurisdiction of the Chickasaw Nation;
2. administer oaths or affirmations to witnesses;
3. require, at any time, the suspension for just cause from involvement in any activity associated with professional Boxing of any employee or official employed by any Licensee or Permitted pursuant to the Act;
4. prescribe the manner that books and financial or other statements of any Licensee or Permitted relating to professional Boxing shall be kept; and
5. visit, investigate, audit, and place accountants and such other Persons as the Commissioner may deem necessary in the offices or places of business related to professional Boxing of any Licensee or Permitted for the purpose of ensuring compliance with the rules and/or regulations of the Commissioner.

SECTION 3-501.14**NOTICE OF VIOLATION--HEARING--ORDERS--
ACTIONS.**

A. If upon inspection or investigation, or whenever the Commissioner finds that a violation of the Act or of any order, standard, or rule promulgated pursuant to the provisions of the Act has occurred, the Commissioner shall give written notice to the alleged violator specifying the cause of the finding. Such notice shall require that the violations be corrected and specify the terms of such correction or that the alleged violator appear before the Commissioner at a time and place specified in the notice and answer the finding.

B. The Commissioner shall afford the alleged violator an opportunity for a hearing conducted in conformity with due process. On the basis of the evidence produced at the hearing, the Commissioner shall make findings of fact and conclusions of law and enter an order and determination thereon. The Commissioner shall provide written notice of such order to the alleged violator and to such other Persons as shall have appeared at the hearing and made written request for notice of the order.

C. Upon the request of the Commissioner, the Chickasaw Nation management of gaming and/or the Attorney General shall appear at all such hearings and participate in proceedings.

D. Chickasaw Management of gaming may be present at any hearing upon filing a request and may appear and be heard with or without legal counsel.

SECTION 3-501.15

PENALTIES--ADMINISTRATIVE FINES--INJUNCTIONS.

A. Any Person who is found in violation of the provisions of the Act by the Commissioner shall be punished by the imposition of an administrative fine of not more than one hundred thousand dollars (\$100,000.00). The Commissioner shall suspend or revoke the License of any Person convicted of violating the provisions of the Act.

B. In addition to other penalties provided by law, if after a hearing in accordance with the provisions of this Act, the Commissioner shall find any Person to be in violation of any of the provisions, such Person may also be subject to an administrative fine of not more than one hundred thousand dollars (\$100,000.00) or not more than one percent (1%) of gross revenues received for each violation. Each day a Person is in violation of the provisions of the Act may constitute a separate violation. All administrative fines collected pursuant to the provisions of this Section B shall accrue to the benefit of the Chickasaw Nation.

C. The Commissioner may make application to the District Court of the Chickasaw Nation for an order enjoining the acts or practices prohibited by this Act, and upon a showing that the Person has engaged in any of the prohibited acts or practices, an injunction, restraining order and/or other order as may be appropriate shall be granted by the Court. Application may be made to the District Court for judgment for any administrative fine unpaid for more than thirty (30) days after assessment and any appeal ended.

D. Appeals of Commissioner decisions to the Chickasaw Nation District Court shall be filed within thirty (30) days of decision or determination.

1. Such appeals shall examine the record made by Commissioner.

2. Such appeals shall overrule the Commissioner ruling only if the record clearly demonstrates the Commissioner's decision is not based upon the law or facts.

SECTION 3-501.16

CLOSED-CIRCUIT TELECAST PERMIT.

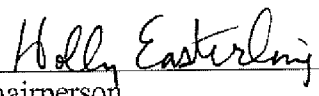
A. Prior to showing a closed-circuit telecast of a Professional Boxing event or Cage Fight held in the Chickasaw Nation's Jurisdiction, a Telecast Promoter must first apply for and obtain a Closed-Circuit Telecast Permit, which shall be issued only upon the approval of the

Commissioner. The application for a Closed-Circuit Telecast Permit shall be on the form provided by the Commissioner, which shall contain:

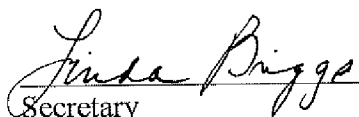
1. the date of the Broadcast;
2. the origination address of the Broadcast;
3. a statement that the Applicant acknowledges responsibility for the payment of an assessments to the Commissioner;
4. the time frame by which the post-event assessment reports must be filed;
5. the portion of the closed-circuit rights for which the Applicant is acknowledging responsibility; and
6. such other information as the Commissioner may deem necessary to carry out the provisions of this Act.

B. As a condition of any and all Closed-Circuit Telecast Permits, the Applicant shall be deemed to have acknowledged and will be required to remit to the Chickasaw Nation Tax Commissioner any and all Chickasaw Nation taxes due on proceeds derived from such broadcasts.

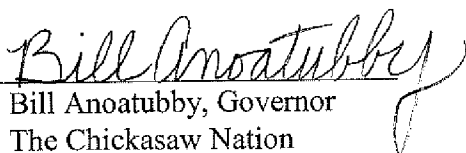
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 19, 2010, by a vote of 13 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 19 2010

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution 27-003
Amendments to Title 3 of the Chickasaw Nation Code
(Chickasaw Nation Professional Boxing Licensing Act)

Explanation: This resolution provides for the enactment of the “Chickasaw Nation Professional Boxing Licensing Act” to be administered by the Gaming Commissioner of the Chickasaw Nation. The Act will allow Chickasaw businesses to provide public entertainment in the form of boxing, wrestling, and kickboxing, including the martial arts. Attachment “A” hereto contains additional information.

Presented by: Legislative Committee

PR27-003
ATTACHMENT "A"

- Professional boxing (along with similar events) is a significant and growing economic opportunity, particularly when conducted in conjunction with casino-style gaming.
- The opportunity or option to host professional boxing (or similar events) at the Nation's premiere gaming facilities would offer a substantial economic opportunity—an opportunity that some other tribal nations in Oklahoma and several other tribes throughout the west are already pursuing.
- Federal law establishes a primary regulatory framework for the conduct of professional boxing events.
- Federal law essentially delegates regulatory duties to:
 - a. state boxing commissions, which bodies have no jurisdiction within Indian country, and
 - b. tribal boxing commissions, which bodies do have such jurisdiction.
- Generally speaking, a tribe that wants to pursue hosting of professional boxing (along with similar events) would accordingly have to either:
 - a. compact with the relevant state boxing commission, thus authorizing such body to exercise jurisdiction over the subject matter within that tribe's Indian country, or
 - b. compact with another tribe that has authorized and operates a tribal boxing commission, thus authorizing that body to exercise jurisdiction over the subject matter within the tribe's Indian country, or
 - c. establish its own boxing commission and regulate the subject matter directly.
- Pursuant to Chickasaw Nation leadership discussions over the past year, CNDC has developed a draft resolution that would pursue the third option, *i.e.*, enacting a "Chickasaw Nation Professional Boxing Licensing Act." If enacted, this measure would:
 - a. authorize the conduct of professional boxing (along with similar events) within the Chickasaw Nation and subject to applicable federal law regulations, and
 - b. delegate duties for the implementation of such Act (*i.e.*, promulgate rules, issue and enforce licenses, *etc.*) to the CNOGC.